

M/S Anurag Pisai Kendra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2013 · Writ-C No. 19111 of 2013 · **Writ disposed; deposit Rs 25,000 and approach Executive Engineer**

HEADNOTE

On a challenge to a recovery citation for electricity dues, the Division Bench did not quash the citation or itself grant instalments. Accepting the licensee's statement that the Executive Engineer is empowered under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005, it directed deposit of Rs 25,000 within 15 days and relegated the petitioner to the Executive Engineer, who may adopt a liberal approach in settling the dispute.

FACTUAL SUMMARY

M/S Anurag Pisai Kendra filed a writ petition in the Allahabad High Court challenging a recovery citation dated 27 February 2013 for electricity dues. The petitioner did not seek a merits adjudication of the citation, and instead offered to deposit the dues in instalments if time were allowed. Counsel for the Power Corporation stated that under Clause 6.14 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005, the concerned Executive Engineer was empowered to consider such a request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility on recovery citation

HOLDING

The Executive Engineer is empowered under Clause 6.14 of the U.P. Electricity Supply Code, 2005 to consider a request for payment of electricity dues in instalments. The High Court will not itself grant the instalment schedule against a recovery citation; it may dispose of the writ by directing a specified deposit and relegating the consumer to that officer.

¶ 1

HOLDING-UNIT · UP-2005::6.5

relegation to Executive Engineer to settle dues dispute

HOLDING

Read with Clause 6.5, a consumer facing a recovery citation may, after the directed deposit, approach the concerned Executive Engineer with a representation and the Court's order. If the application is moved within the stipulated period, the Executive Engineer may adopt a liberal approach in settling the dispute. The citation is not examined on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY CITATION DATED 27.2.2013

Writ disposed by directing a deposit and relegating the petitioner to the Executive Engineer; the citation was neither quashed nor examined on merits. ¶ 1